

5.	Santana vs. General Motors, LLC 23-01342122	Motion to Compel Deposition (Oral or Written) Plaintiff Melesio Sanchez Santana’s Motion to Compel the Deposition of Defendant General Motors, LLC’s Person Most Qualified is GRANTED. (Code Civ. Proc., § 2025.450.) Defendant is ORDERED to designate a person most qualified to testify as to each of topics 1-20 identified in Exhibit A of Plaintiff’s Amended Notice of Deposition of the Person Most Qualified for General Motors, LLC, dated 11/22/2024, and to make that person available for a deposition on a mutually agreeable date no later than 4/28/2025. Plaintiff has substantially complied with any meet and confer requirement. (See ROA #39 [Wood Decl.] ¶¶ 10-18, Exhs. 2-7; see also <i>Obergon v. Super. Ct.</i> (1998) 67 Cal.App.4th 424, 433-434 [inadequate meet and confer warrants denial of discovery only in egregious cases].) Defendant failed to respond to Plaintiff’s multiple requests for a mutually convenient date for the deposition, despite agreeing to produce a PMQ for deposition on examination topic nos. 1-5, 7, 10, and 20. Defendant’s objections the remaining examination topics are without merit. (See Code Civ. Proc., § 2017.010 [broad scope of discovery]; <i>Lopez v. Watchtower Bible & Tract Society of New York, Inc.</i> (2016) 246 Cal.App.4th 566, 591 [relevance for purposes of discovery]; see also <i>Bowser v. Ford Motor Co.</i> (2022) 78 Cal.App.5th 587, 615-617 [manufacturer internal documents show its state of mind and knowledge of alleged defects]; <i>Donlen v. Ford Motor Co.</i> (2013) 217 Cal.App.4th 138, 143-144, 153 [relevance of evidence similar problems in other vehicles]; <i>Johnson v. Ford Motor Co.</i> (2005) 35 Cal.4th 1191, 1200, 1204, 1213 [manufacturer policies and procedures may show a willful failure to comply].) The court has also already overruled Defendants’ same objections with respect to Plaintiff’s Motion to Compel Further Responses to Requests for Production of Documents, Set One. (See ROA #63.) Defendant’s confidentiality and trade secret objections are also already addressed by the parties’ stipulated protective order, which the court signed and entered on 8/9/2024 (ROA #26). Plaintiff was not required to file a separate statement under California Rules of Court (CRC), rule 3.1345 because this motion seeks to compel only Defendant’s attendance at its deposition, which is not one of the types of motions for which a separate statement is required. (CRC 3.1345(a).)
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		Plaintiff shall give notice.
6.	Nichols vs. Dareshoori 24-01399599	1. Motion to Compel Answers to Special Interrogatories 2. Motion to Compel Production <u>Motion to Compel Further Responses to Special Interrogatories.</u> Defendant Amir Dareshoori's motion to compel Plaintiff Delano Nichols to provide further responses to Special Interrogatories, Set One, is GRANTED in part and DENIED in part. (Code Civ. Proc., § 2030.300 [authorizing motion].) The motion is GRANTED as to further responses. Plaintiff Delano Nichols shall provide full, complete, and verified responses to Special Interrogatories, Set One, Special Interrogatory Nos. 1-4, 9-10, 11-37, 40, 48-49, without objection, within 15 days. Plaintiff has not substantiated his objections and/or failure to fully respond to these Interrogatories, as is his burden. (<i>Coy v. Superior Court</i> (1961) 58 Cal.2d 210, 220-221; <i>Fairmont Ins. Co. v. Superior Court</i> (2000) 22 Cal.4th 245, 255; <i>Williams v. Superior Court</i> (2017) 3 Cal.5th 531, 541-542.) Both parties' sanctions requests are DENIED. Moving party shall give notice. <u>Motion to Compel Further Responses to Requests for Production.</u> Defendant Amir Dareshoori's motion to compel Plaintiff Delano Nichols to provide further responses to Requests for Production, Set One, Request No. 15, is DENIED. (Code Civ. Proc., § 2031.310 [authorizing motion].) Moving party fails to show good cause for production of any and all records of medical treatment by plaintiff for the past seven years, without any other limitations, as sought by Request No. 15. (Code Civ. Proc., § 2031.310, subd. (b)(1) [moving party's burden to show good cause]; <i>Calcor Space Facility, Inc. v. Superior Court</i> (1997) 53 Cal.App.4th 216, 223-224 [evidence necessary to show good cause]; <i>Britt v. Superior Court</i> (1978) 20 Cal.3d 844, 864, citing <i>In re Lifschutz</i> (1970) 2 Cal.3d 415 ["plaintiffs are not obligated to sacrifice all privacy to seek redress for a specific [physical,] mental or emotional injury; while they may not withhold information which relates to any physical or mental condition which they have put in issue by